

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

JANE RNW DOE,

Plaintiff,

v.

REDLANDS UNIFIED SCHOOL DISTRICT,
et al.,

Defendants.

Case No.: CIVSB2215901

**[TENTATIVE] ORDER
GRANTING MOTION TO BE
RELIEVED AS ATTORNEY OF
RECORD**

I. INTRODUCTION

A. The Complaint's Allegations

On July 22, 2022, Plaintiff Jane RNW Doe filed her Complaint against Redlands Unified School District (District) and Michael A. Allen alleging 12 causes of action for: 1) negligence; 2) negligent supervision; 3) negligent hiring/retention; 4) negligent failure to warn, train, or educate; 5) intentional infliction of emotional distress; 6) assault; 7) sexual battery; 8) sexual harassment; 9) gender violence; 10) sexual abuse and harassment in the educational environment; 11) breach of fiduciary duty; 12) constructive fraud.

Claims 1, 5, 8, 11, and 12 are against all Defendants; claims 2, 3, 4, and 10 are against District; claims 6, 7, and 9 are against Allen. Plaintiff dismissed the 12th cause of action as to District. Allen answered *in pro per*. District answered.

Plaintiff alleges that during her freshman year at Redlands High School in the District, in or about fall 2005, Defendant Allen sexually harassed, assaulted, and abused her. Allen was a teacher, coach, mentor, and advisor at Redlands High School. Plaintiff alleges that before she reported Allen's abuse, the District knew or had reason to know of Allen's sexual misconduct with minors at Redlands High School.

B. Motion to Be Relieved as Counsel

Now before the court is a motion to be relieved as counsel brought by Plaintiff's counsel Morgan A. Stewart of Manly, Stewart & Finaldi (Counsel). Plaintiff opposes and Counsel replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. APPLICABLE LAW

A litigant's attorney may withdraw from representation at any time before or after judgment or final determination either with the client's consent or by court order after notice to the client. (Code Civ. Proc., § 284.)

California Rules of Professional Conduct, rule 1.16 provides various situations in which a lawyer "shall withdraw from the representation of a client" and "may withdraw from representing a client." (Rules Prof. Conduct, rule 1.16(a), (b).) As relevant here, a lawyer may withdraw from client representation if "the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively." (Rules Prof. Conduct, rule 1.16(b)(4).)

“The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (*Manfredi & Levine v. Super. Ct.* (1998) 66 Cal.App.4th 1128, 1133 (*Manfredi*)). “Where issues of confidentiality prevent ‘counsel from further disclosure and the court [accepts] the good faith of counsel’s representations, the court should find the conflict sufficiently established and permit withdrawal.” (*Id.*, at p. 1133.)

Conflicts of interest come in all shapes and sizes. (*Aceves v. Super. Ct.* (1996) 51 Cal.App.4th 584, 590 (*Aceves*)). One circumstance giving rise to a conflict is where there has been an irreparable breakdown of the working relationship between counsel and client. (*Manfredi, supra*, 66 Cal.App.4th at pp. 1134-35.)

III. WHY THE COURT IS GRANTING THE MOTION

Counsel Stewart moves to be relieved as Plaintiff’s counsel because “there has been a breakdown in the attorney-client relationship and communication between Plaintiff and counsel, such that counsel is unable to continue to represent Plaintiff.” (Stewart Decl., ¶ 4.) Stewart also states in his initial supporting declaration that there “have been persistent and ongoing deficiencies in mutual trust, candid and timely communications, and alignment with respect to legal strategy between counsel and Plaintiff such that continued representation has been rendered unreasonably difficult and adverse to Plaintiff’s best interests.” (Stewart Decl., ¶ 5.)

Plaintiff opposes the motion; her filing states she is “In Pro Per.” Plaintiff provides a variety of arguments against withdrawal: because the case is in a procedurally critical stage with a pending summary judgment motion (MSJ) and trial less than three months away; Counsel seeks withdrawal without any meaningful transition plan, without having prepared an opposition to the MSJ, and without ensuring Plaintiff has sufficient time to secure replacement counsel; and Plaintiff contends she will suffer irreparable prejudice if Counsel is permitted to withdraw. (Plaintiff Opp., 1:17-25.)

Plaintiff further contends that Counsel seeks to withdraw because of a disagreement over trial strategy, because Counsel has not been diligent in their representation, and intends to abandon Plaintiff on the eve of trial. (Plaintiff Opp., 2:19-21.) Plaintiff argues the purported breakdown in communication “amounts to little more than a disagreement about litigation strategy and does not warrant immediate withdrawal.” (Plaintiff Opp., 3:3-4.) Plaintiff states she is open to seeking alternate counsel and is willing to consent to withdrawal after Counsel has discharged their obligations to her.

Plaintiff’s opposition consists of a three-page memorandum of points and authorities plus a signature page and two-page proof of service. Plaintiff did not supply any declarations under penalty of perjury nor any other evidence in support of her opposition. In that regard, Plaintiff did not present any evidence that prejudice will result from the withdrawal nor any evidence refuting the good faith of Counsel Stewart’s representations of the conflict warranting withdrawal. Plaintiff did not present any evidence supporting the various arguments outlined above.

When a litigant is appearing *in propria persona*, she is entitled to the same, but no greater, consideration than other litigants and attorneys; she is held to the same restrictive rules of procedure as an attorney. (*Nelson v. Gaunt* (1981) 125 Cal.App.3d 623, 638-39 (*Nelson*); accord *Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 193 (*Bistawros*).) Plaintiff’s lack of supporting evidence does not further her opposition arguments.

In terms of legal authority, some of Plaintiff’s cited cases do not stand for the propositions she argues. For example, Plaintiff contends the court must assess whether there is “good cause” for the attorney to withdraw and if so, whether withdrawal will result in prejudice to the client’s case thereby denying the client a fair hearing. For these points, Plaintiff relies on

Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915 (*Ramirez*) and *Aceves, supra*, 51 Cal.App.4th at p. 592.

The *Ramirez* case at page 915 does not mention the necessity of a good cause assessment. Instead, the *Ramirez* court states: “We see no basis in law, or in logic, for a conclusion that an attorney never may withdraw from a case except for cause.” (*Ramirez, supra*, 21 Cal.App.4th at p. 915.) However, the *Ramirez* court acknowledges that a lawyer violates his or her ethical mandate by, *inter alia*, withdrawing at a critical point thereby prejudicing a client’s case. (*Ibid.*) As such, a consideration of prejudice is part of the court’s withdrawal analysis.

Regarding *Aceves*, Plaintiff cites this case for the point that a trial court must consider prejudice to the client and the stage of the proceedings when ruling on a motion to withdraw, directing the court to pinpoint cite 592 in *Aceves*. However, the *Aceves* court at page 592 does not discuss prejudice nor the stage of the proceedings. (*Aceves, supra*, 51 Cal.App.4th at p. 592.)

Next, Plaintiff cites to *Manfredi* for the point that a court must exercise informed discretion and is not required to accept conclusory assertions of “good cause.” (*Manfredi, supra*, 66 Cal.App.4th at p. 1133.) The *Manfredi* court at page 1133 does not mention the words “informed discretion” and “conclusory,” but states the determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court. (*Ibid.*)

Lastly, Plaintiff contends that a withdrawal lacking good cause constitutes abandonment of the client, relying on *Ramirez, supra*, 21 Cal.App.4th at p. 915. However, the *Ramirez* decision does not so state; instead, the *Ramirez* court wrote: “[a] lawyer violates his or her ethical mandate by abandoning a client” but does not equate lack of good cause with abandonment. (*Ibid.* (emphasis in original).)

In reply, Counsel Stewart supplies a declaration providing more evidence about the nature of the breakdown of the attorney-client relationship, apparently in response to Plaintiff's opposition contentions about the breakdown being limited to a trial strategy disagreement. Normally, the general rule of motion practice holds that new evidence is not permitted with reply papers. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) However, reply declarations that fill gaps in evidence created by an opposition are proper. (*Id.*, at p. 1538.) Here, Counsel Stewart's reply declaration addresses the concerns raised in Plaintiff's opposition and gives the court more information concerning the nature of the claimed attorney-client communication breakdown that supports the motion to be relieved as counsel.

"The trial court still has a duty to explore the conflict, and counsel has a corresponding duty to respond, and to describe the general nature, as fully as possible but within the confines of privilege." (*Aceves, supra*, 51 Cal.App.4th at pp. 592-593.) The Court exercises discretion to consider Counsel's reply brief including its declaration.

The reply declaration from Counsel Stewart, together with the separate declaration from Counsel Baker, make clear that they should be allowed to withdraw from this representation. The uncontradicted evidence establishes that the relationship between Counsel and Plaintiff "has suffered a foundational collapse of trust and cooperation." (Stewart Reply Decl., ¶ 3.) Stewart elaborates: "Following Plaintiff's deposition in this matter on February 13, 2026, there has been a substantial lack of my trust in Plaintiff, candid and timely responses by Plaintiff to my communications, and sufficient alignment regarding litigation decisions between myself and Plaintiff." (*Id.*, ¶ 4.) Stewart states he "can no longer rely on or trust Plaintiff's representations or cooperation in this matter" and this development prevents him and his firm from opposing

dispositive motions, advancing positions opposing the District's MSJ, and preparing for trial. (Id., at ¶ 7.)

Stewart attests that his firm has made diligent efforts to obtain a continuance for Plaintiff regarding the MSJ deadlines and the trial date; his firm drafted a stipulation for continuance (to which District expressed interest in agreeing) but Plaintiff has not given authority to seek a continuance on her behalf. (Stewart Reply Decl., ¶ 8.) Following Plaintiff's February 13, 2026, deposition, Stewart states the attorney-client relationship between himself and Plaintiff deteriorated to the point where he "can no longer rely on or trust Plaintiff's representations or cooperation." (Id., at ¶ 5.)

This additional evidence underscores and confirms the existence of a conflict in the form of an irreparable breakdown of the working relationship between counsel and client. (*Manfredi, supra*, 66 Cal.App.4th at pp. 1134-1135.) Counsel Stewart's evidence is not conclusory; he provides specific examples, including a time frame, of how and when the communication breakdown occurred and how it has impacted his and his firm's ability to represent the Plaintiff within the bounds of their ethical duties as attorneys. There is no evidence controverting the good faith of Counsel Stewart's representations. "Where issues of confidentiality prevent 'counsel from further disclosure and the court [accepts] the good faith of counsel's representations, the court should find the conflict sufficiently established and permit withdrawal.'" (*Manfredi, supra*, 66 Cal.App.4th at p. 1133.)

With the case filed on July 22, 2022, the case is still over one year away from the five-year statutory dismissal requirement. (Code Civ. Proc., § 583.310.) Although a jury trial is scheduled for July 20, 2026, and District's MSJ is set for hearing on June 4, 2026, the Court will be inclined to continue both of these dates upon Plaintiff's request, to allow Plaintiff time to

obtain new counsel.¹ While Plaintiff has not presented any evidence of prejudice, to the extent that any prejudice may exist, the court's ability to continue the MSJ and trial dates mitigates such prejudice. Plaintiff acknowledges she is open to seeking alternate counsel.

IV. CONCLUSION

Counsel Stewart and Manly, Stewart & Finaldi's motion to be relieved as counsel is GRANTED, effective upon filing a proof of service with the court reflecting service upon Plaintiff of the court's order on this motion.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court

¹ The Court intends to schedule the MSJ hearing at least 30 days before any continued trial date. (Code Civ. Proc., § 437c, subd. (a)(3).)

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

JORGE ALBERTO ESPARZA,

Plaintiff,

v.

MERCEDES-BENZ USA, LLC, ET AL.,

Defendants.

Case No.: CIVSB2502290

**[TENTATIVE] ORDER DENYING
MOTION FOR JUDGMENT ON
THE PLEADINGS FILED BY
DEFENDANT MERCEDES-BENZ
OF ONTARIO**

V. INTRODUCTION

This is a lemon law action. On January 22, 2025, Plaintiff Jorge Alberto Esparza (Plaintiff) filed a Complaint alleging the following causes of action against Defendants Mercedes-Benz USA, LLC (Mercedes), and Jones Ontario Acquisition, LLC dba Mercedes-Benz of Ontario (Jones Ontario): (1) violation of Song-Beverly Act - breach of express warranty (against Mercedes only); (2) violation of Song-Beverly Act - breach of implied warranty (against Mercedes only); (3) violation of Song-Beverly Act – Civil Code section 1793.2; and (4) negligent repair (against Jones Ontario only). Defendants answered.

Plaintiff alleges he leased a 2022 Mercedes-Benz SL Class (the Subject Vehicle) on May 26, 2023, but defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including engine, electrical and emission system defects. Despite being covered by warranties, Defendants failed to repair the vehicle within a reasonable time. Mercedes also failed to provide a replacement or make restitution. (Compl. ¶¶ 9-19.)

Defendant Jones Ontario now moves for a judgment on the pleadings as to Plaintiff's fourth cause of action for negligent repair. Plaintiff opposes. Jones Ontario replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.²

VI. APPLICABLE LAW

A party may bring a motion for judgment on the pleadings (JOP) after filing an answer and the time to demurder has expired. (Code Civ. Proc., § 438, subd. (b)(1) and (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548 (*Evans*).) If the moving party is the defendant, then a motion for judgment on the pleading is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438, subd. (d).)

Essentially, a JOP performs the same function as a general demurrer, *i.e.*, it attacks only the defects disclosed on the face of the pleading or by matters that are judicially noticed. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) As such, the JOP admits the truth of all material facts alleged in the complaint. (*Evans, supra*, 28 Cal.App.4th at p. 549.)

² The Court finds that the moving party has complied with its meet-and-confer obligation.

VII. EXPLANATION OF THE COURT'S RULING

For a claim of negligent repair, the traditional negligence elements apply, *i.e.*, (1) legal duty, (2) breach of the legal duty, (3) causation, and (4) damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) A person who undertakes the repair of a product owes a duty to do so without negligence, *i.e.*, a duty to perform those services in a good and workmanlike manner. (Civ. Code, § 1796.5.)

Defendant Jones Ontario challenges Plaintiff's fourth cause of action on the grounds that it fails to state facts sufficient to constitute a cause of action, in particular, that it is barred by the economic loss rule. It argues that Plaintiff critically fails to properly allege damages, a critical part of any negligence claim. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.) Specifically, the argument continues, Plaintiff has failed to allege personal injury damage or damage to property other than the product itself. In support of this contention, Defendant Jones Ontario relies on the economic loss rule. (*Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483 (*Jimenez*).) As such, Defendant Jones Ontario asserts that the negligent repair claim fails.

Here, Plaintiff alleges that (1) he delivered the vehicle to Jones Ontario for repairs on numerous occasions (Compl. ¶¶ 12-19, and 68); (2) Jones Ontario breached its duty to use skill and care in storage, preparation, and repair of the Subject Vehicle as expected by industry standards (Compl. ¶¶ 69-70); and (3) Jones Ontario's breach was the proximate cause of Plaintiff's damages. (Compl. ¶ 71.)

The Court is not persuaded by the defense's arguments. Further pleading of facts in support of negligence and damages is not required as Jones Ontario argues, Jones Ontario has not established that the economic loss rule bars Plaintiff's negligent repair cause of action.

Negligence may be alleged generally. (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 154-55.) In California, "it is sufficient to allege the negligence in general terms,

specifying, however, the particular act alleged to have been negligently done.” (*Id.* at p. 155) As a general rule, a negligence cause of action is not subject to a heightened pleading standard. (*See Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, 514 [“Under well-established principles, . . . general allegations of negligence, proximate causation and resulting injury and damages suffice to state a cause of action”.].)

As for Defendant Jones Ontario’s economic loss rule argument, the economic loss rule provides that, “[i]n general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922 (*Sheen*).) “California decisional law has long recognized that the economic loss rule does not necessarily bar recovery in tort for damage that a defective product (*e.g.*, a window) causes to other portions of a larger product (*e.g.*, a house) into which the former has been incorporated.” (*Jimenez, supra*, 29 Cal.4th at pp. 483-84.) However, there is a “recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services.” (*Sheen, supra*, 12 Cal.5th at p. 933.) As the *Sheen* court explained:

“In that context, a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide. In such settings, professionals generally agree to provide ‘careful efforts’ in rendering contracted for services, but ‘most clients do not know enough to protect themselves by inspecting the professional’s work or by other independent means. (*Id.* (citations omitted).) “Given this disparity, a claim for professional negligence can serve the important purpose of ensuring that professionals render the ‘careful efforts they have contracted to provide.” (*Id.* (citations omitted).)

In *Sheen*, 12 Cal.5th at 923, the California Supreme Court also held that the economic loss rule “involves parties who are in contractual privity.”

Here, there is no allegation that Plaintiff had a contractual relationship with Jones Ontario. As discussed above, Plaintiff generally alleges that Jones Ontario breached its duty by failing to properly store, prepare, and repair the Subject Vehicle according to industry standards,

which caused damage. (Compl. ¶¶ 69-70.) It also is not clear from the face of the pleading that negligent acts are associated with the defective product. The generic allegation leaves open the door that some repair on the alleged defect damaged another part or the vehicle as a whole, thereby falling outside the economic loss.

VIII. CONCLUSION

Defendant Jones Ontario's Motion for Judgment on the Pleadings is respectfully
DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court